

Chapter 1.

MY MANIFESTO: I Shall Not Close My Eyes to What I See, nor Hush My Voice to What I Speak

Introduction

I will not censor myself as a sociologist, writer, and Orthodox Jew for fear of fomenting antisemitism, jeopardizing someone in power, or bringing shame to iconic Orthodox institutions or to an entire community. I will not be deterred by any of these specious conditions or hollow constraints. I will not close my eyes to what I see, nor hush my voice to what I speak. I only ask of the reader to do the same.

Whether you are an Orthodox Jew or secular Jew, a member of another faith, or someone religiously unaffiliated, I urge you not to censor yourself either as you pore over these pages. Instead, consider the impact on the victim, allowing yourself to viscerally relate to the injustice of sexual assault and its ensuing cover-up. And caution yourself not to raise common defenses, for the latter is often a natural reaction to anything that erodes our confidence in our prized institutions and religious leaders.

When I began to embark on this book project, choosing not to censor myself would prove an arduous decision. Considering the freighted collective memories of historical persecution of my people – and concomitant fears of reigniting antisemitism – I spoke in earnest to my confidantes. Most, if not all, advised me to exercise utmost restraint: to spare certain institutions and individuals, who had already been exposed for their complicity in allowing the abuse of innocents, from the kind of penetrating analysis and harsh critique, which would be fundamental to a ratiocinative expository of this kind. Likewise, they cautioned me not to dig “too deeply,” fearing that it would expose opprobrious elements of the community, better left hidden in a web of obscurity.

I would be disingenuous if I were to deny that their exhortations did not have an influence on me. In response, I found myself making assurances to my circle of colleagues and friends that I would “hold back.” Surely, these were not vacuous promises, but veritable ones that I had truly intended to keep. What I hadn’t realized was that contrary to this ideal picture of deference to those both within my inner circle and within my wider orbit, I could not escape the fact that the process of writing a book takes on a life force of its own – shifting inescapably from conscious control to subconscious flow.

To draw an analogy here, the act of writing can be as laboriously self-excavating as psychoanalysis, wherein barriers to introspection are unsparingly stripped away so that core truths about one's hidden motives, drives, desires are allowed to emerge. Inasmuch as one cannot prevent hidden feelings and emotions from coming to the fore in the psychoanalytic process, similarly, when writing a book, one cannot filter, regulate, or suppress the emergence of analytic findings. The truth emerging from close analytic scrutiny of a subject can be suppressed no more easily than that emerging from the rigorous study of one's own psyche.

When "composition" and "truth" become inseparable partners in the marriage of literary creation, it makes it impossible for the author to join "the chorus of deniers." Notably, when I rendered my assurances that I would "censor" my punishing critique of sexual abuse in post-Holocaust Orthodoxy – a decision that would have reduced this discussion to mere bromides and excuses, best left abandoned in the alleys of palaver and pabulum, simply to satisfy those wishing to shield the citadels of power and prominent rabbis from obloquy – it was before I had commenced the earnest writing of this book.

Confessionally, this is not to say that the painstaking process of enucleating the truths from a labyrinthine complex of human defenses and coverups has been straightforward. Rather, it can be better described as an exercise in *wavering* composition characterized by a constant vacillation between concerns over someone I knew (or the institutions I admired) and the desire to tell the truth. But, when I bridled my writing about the Orthodox community's horrid sex scandals in the schools, shuls (Hebrew for synagogue), foster care agencies, sleepaway camps, and so forth, the cloudy waters of prevarication and deceit drowned my work. The harrowing cries of the victims, the quiet sobs of the innocent, and the weight of unspoken sorrows began to haunt me with relentless force. It was then that I decided to open the barn door and let the horses of Truth charge ahead, for fear that the brewing scandal would implode someday in the community with dreadfully infernal consequences.

However, I needed to be protected, at least temporarily, from the violent tremor of my world turning upside down, until the truth resonated with me so loudly that the veil was abruptly torn away. I understood at that moment that the sheath of protection was actually blinding me to the realization that those I had held in high esteem all of my life had now eviscerated the (unmerited) trust I reposed in them. This pattern of denial would repeat itself many times. On each occasion that I'd learn about abuse at a revered institution, the familiar defense mechanism of denial would be reprised as I

tried to protect myself from acknowledging that those I had once held in veneration had now plunged into a culvert of disgrace.

I strengthened my mooring by realizing that the weight of the victims' suffering far exceeded my own need to preserve the rosy images of the institutions at the marrow of my existence. Viscerally feeling the extent of injury to the victims and the malign actions of those who pillory them while valorizing the offender, I was resolved to let the floodgates of scandal open wide for all to see the rot within. But this is not to say that this decision was without internal strife. Still, I ask rhetorically: if I were to selectively exclude those illustrious clerics and religious institutions from punishing analysis, would I be any different than those in the Orthodox community – or in any religious community for that matter – who directly partake in, co-enable, or orbit around such moral schisms?

At the Crossroads of My Dilemma – Choosing between my Loyalty to Nostalgia and my Fidelity to Truth

One of the most defining moments at the *crossroads* of my dilemma came when I had to reconcile my deep admiration for my 1970s religious studies teacher, Rabbi Haskel Lookstein, with the revelation that he had ignored complaints of sexual abuse. Rabbi Lookstein was my professor at Teachers Institute for Women (a division of Stern College for Women and Yeshiva University), and he also served as the principal at Ramaz, an exclusive private Hebrew day school on Manhattan's Upper East Side.

As a young person traversing uncharted terrain, I cleaved to those who were able to serve as true mentors. And this rabbinic leader, had undoubtedly exceeded my expectations. I recall how I looked forward with much alacrity to going to Rabbi Lookstein's Psalms class on Tuesday evenings in midtown Manhattan. He had mastered the art of teaching, and it was evident he put in due preparation for his class lectures. I remember how the students were animated and engaged, as they fielded his thought-provoking questions.

What I recall most vividly about Rabbi Lookstein was how he masterfully brought liturgy to life. Approaching the Book of Psalms with infectious enthusiasm and joy, he bridged ancient text with modern life. In this classroom we explored how the Book of Psalms encompasses with a large net the intense range of human emotions from lament to joy, and how it celebrates a just, kind, and equitable God who understands the depth of human suffering. Learning of the quintessence of God, I found myself miraculously transported to an empyreal, sublime place.

Indeed, Rabbi Haskel Lookstein enjoyed an excellent reputation as one of the finest teachers at Teachers Institute for Women, and he would bask in the glow of his merited stature until an ugly scandal surfaced decades later at the Ramaz day school, where he served as principal. My admiration for him was so strong in fact that just a couple of years before the scandal at his elite private day school would erupt, I had written a letter of praise about him, which would be published in the *Forward*, a national publication for Jewish intellectuals, which had started out in the late 19th century as a Yiddish daily but is now exclusively digital, reaching over 2 million unique monthly visitors online.

My letter, titled “The Real Reason Rabbi Lookstein Retreated from the RNC,” addressed a major news story about the rabbi having backed away from giving the invocation at the Republican National Convention in 2016, after having accepted a personal invitation from Donald Trump, whose nomination was confirmed at the convention for his run in the upcoming November election.

Lookstein’s retreat was prompted by a petition bearing 600 signatures of his former Ramaz day school students, who were adamant about his not delivering an invocation at the convention for they were vehemently opposed to Trump’s views, referring to it as “Trumpism.”¹ They demanded that he back down from delivering the opening prayer at the Republican National Convention. Cowering to pressure, and not wanting to drive a wedge between himself and his community, he retreated from giving the invocation. In an email he shared with the press, he stated: “In the interest of bringing our community together, I have asked to be relieved of my commitment to deliver the invocation.”²

This posed a particularly difficult quandary for the rabbi since Jared Kushner (Trump’s son-in-law) and Ivanka Kushner, Trump’s daughter, were members of Lookstein’s shul, Kehilath Jeshurun, on Manhattan’s Upper East Side. Surely, the bonds were strong because Lookstein had supervised the conversion of Trump’s daughter, Ivanka, to Judaism, which requires intense one-on-one preparation – a sacred, arduous soul-searching process steeped in the commitment to Jewish Law and to raising future children to be

1 In 2016, Modern Orthodox Jews were more or less solidly behind Hilary Clinton. A sea change occurred by 2024 when most Modern Orthodox Jews had voted Trump into office. The October 7 massacre and Israel’s counter-offensive, which has heavily criticized by Democratic candidate Kamala Harris, was a major incentive to switch party loyalty among the Modern Orthodox Jews, which followed the more religious Orthodox constituencies who were staunchly supportive of Trump.

2 Jeremy W. Peters, “Ivanka Trump’s Rabbi Pulls Out of Appearing at Republican Convention,” *New York Times*, July 15, 2016.

staunchly proud members of the Jewish faith – over an extended period of time.

Prompted to come the rabbi's aid, I wrote in the *Forward*:

...I was privileged to study under Rabbi Haskel Lookstein when I attended Teacher's Institute back in the 70s. The man I knew then, and the man I would encounter years later, was a person of dignity, determination and fortitude....Though I am deeply saddened that Rabbi Lookstein will not be giving the invocation at the RNC, I can say that I truly understand the man: it was not weakness or cowardice that forced him to retreat, but a deep respect for his role as a teacher, educator, and beacon of light for all us in the Jewish community.³

Two years later, the scandal would break in the secular and religious media, that for me ignited a maelstrom of cacophonous currents – nostalgia versus truth – that were painful to bear. I had to reconcile two incongruent images: one of virtue and the other of moral failing. More importantly, as a member of the Orthodox community, I witnessed how these occurrences – one scandal erupting after another – were no longer anomalies. They were becoming rather commonplace, especially after the 2019 passage of the Crime Victims Act in the state of New York.⁴

From these phenomenologically lived experiences of moral incongruity – between my ideal image of clerical figures and their disappointingly reprehensible actions – was born the archetypal framework of *moral schisms* to which I devote this elucubration.

Shielding Yeshiva University: Reconciling the Long-Ago Promise I made to my Late Father with the Revelation of a Shocking Sex Scandal at his Cherished Alma Mater where Children of Holocaust Survivors were Deliberately Targeted by Predators on the Faculty, Administration, and in the Dormitories

As a researcher and as a member of the Orthodox Jewish population, I found many of the sex scandals at religious institutions profoundly disturbing. One

3 Amy Neustein, "The Real Reason Rabbi Lookstein Retreated From the RNC," Letter to the Editor, the *Forward*, July 19, 2016.

4 Give definition of lookback and change of age of first filing a claim – cite NYT or another authoritative paper. Jewish Telegraphic Agency (JTA) reporters Asaf Shalev and Ella Rockart wrote a blistering expose titled "NY Jewish Institutions hit with 150 child sex abuse lawsuits since 2019." The story was picked up by *The Times of Israel*, August 30, 2021; "At least 150 sex abuse lawsuits filed against NY Jewish Institutions," Jerusalem Post, August 31, 2021. Most notably, certain institutions were hit with multiple lawsuits, such as Yeshiva University and the Ohel Children's Home and Family Services, a prominent foster care agency in Brooklyn. Give TOI citation from September 2021, and give a citation from NYT regarding Yeshiva University.

institution, in particular, caught in the web of infamy after scathing reports in the press of decades-long sexual abuse and sodomy, particularly targeting children of Holocaust survivors,⁵ represented a visceral, demoralizing rupture for me. It was my late father's beloved alma mater: Yeshiva University. On the dining room wall of my childhood home in Manhattan Beach, Brooklyn, hung a glistening plaque dedicated to my father from Rabbi Norman Lamm, Yeshiva University's president, who would later become chancellor. Engraved on the laminated wood was Rabbi Lamm's expression of sincere gratitude to my father, a distinguished rabbi, educator, and scholar,⁶ for his unwavering support of Yeshiva University – the institution that had conferred ordination upon him in 1940.

My father, Rabbi Dr. Abraham Neustein, was well-known to Rabbi Lamm because of his unusual stature in the rabbinic world. He served as chief rabbi of the Jewish Center of Brighton Beach – the largest Modern Orthodox Jewish congregation in Brooklyn at the time – for sixty-two years until his death in 2002. My father's synagogue, a 1930 four-story Renaissance Revival trapezoidal structure clad in gold-colored stone with a prominent grand staircase leading to a second-story loggia, would eventually earn a spot on the National Registry of Historic Places and even catch the eye of Hollywood, serving as a set for Nicolas Cage in *Lord of War*.⁷ During his tenure at the synagogue, he served as the first principal of Flatbush Yeshiva High School.

Growing up in a home of a prominent rabbi, I became painfully attuned to – and perhaps somewhat obsessed with – the rigorous standards of comportment expected of me. I obliged. However, I do recall those liminal moments when my personal beliefs appeared headed for a collision with the rabbinate's (Jewish clerical body) established posture, stance, and political

5 Amended Complaint, Index No. 950111/2019, p. 4.

6 who was posthumously bestowed the "Talmud Chacham Ha'dor Award" (Hebrew for Talmudic Sage of his Generation Ponenvitz yeshiva, give cite from my eulogy in JP and the write up in Yated Ne'eman

7 Noah Sheidlower, "Top Ten Secrets of Brighton Beach, Brooklyn," untapped new york (Digital Magazine), December 7, 2021. See Wikipedia page: [Jewish Center of Brighton Beach - Wikipedia](#). My father's synagogue would achieve fame in another regard. In 2013, *Village Voice* reporter Albert Samaha (now at *The Washington Post*) wrote an exposé on extortionist tactics of Mendel Epstein, a Brooklyn rabbi, pretending to help women get a Jewish divorce, whose crimes of extortion, kidnapping, and extreme torture landed him in federal prison. See "Bad Rabbi: Tales of Extortion and Torture Depict a Divorce Broker's Brutal Grip on the Orthodox Community," *Village Voice*, December 4, 2013. My father was portrayed in that article for his courageous efforts to help divorced women, many of whom nearly fell prey to the extortionist practices of Epstein. The Voice reported: "Rabbi Neustein ran a sort of Underground Railroad for abused women in the community.... So two or three times a week, Neustein's father drove the women to the Jewish Center's *bais medrash*, the prayer room where he taught, and they told her their stories: of domestic violence, of crumbling marriages, of *get* refusals." It was in this same room, the *bais medrash* of my father's synagogue (in addition to the main sanctuary) where Nicolas Cage starred in the 2005 crime drama film *Lord of War*.

disposition. Thankfully, this was not widespread, but rather narrowly focused on my child advocacy position, since I was zealously committed to protecting Jewish (and non-Jewish) children from the perils of abuse and could not be persuaded to back away.

That moment of collision between my views and those of the rabbinate had cast its shadow across my path in the fall of 1990. I had just returned home from appearing on a live television show aired on New York's WWOR TV, Channel 9, referred to back then as a "superstation" since their coverage was broadcast beyond the geographic New York area via cable and c-band satellite to subscribers across the United States. I found myself suddenly in the spotlight, navigating a media frenzy prompted by my decision to speak about a taboo subject: child abuse in the Orthodox world. A heartbreaking story in Brooklyn's ultra-Orthodox Hasidic community of Boro Park had recently erupted in the press and I felt compelled to act. The story involved eight-year-old Yaakov Riegler, a severely mentally challenged boy, who was killed on Yom Kippur (Day of Atonement) by his mother who repeatedly stabbed him with a knife, beat him, and twisted his leg so viciously that she heard the thigh bone crack.⁸

Boro Park was aflutter as it faced its first high-profile filicide case to attract widespread national coverage. Reverberations were felt in Orthodox communities outside of New York and around the country as the idealized image of strong, stable family life was contradicted by the violent death of this child. New York Newsday investigative reporter Clara Hemphill, who served as the lead journalist on the Yaakov Riegler story, would share with her team of reporters a 1991 Pulitzer Prize for Local Reporting. She interviewed me at length and quoted me in her story.⁹ I urged her to do a follow up focusing on the foster care agency, Ohel Children's Home and Family Services (a/k/a "Ohel"), which had failed miserably to protect the boy despite their overseeing the family for the past five years.

8 Celia W. Dugger, "As Mother Killed Her Son, Protectors Observed Privacy," *New York Times*, February 10, 1992, pg. 1, B10. Interestingly, the mother was not identified in the newspapers as "psychotic." There were reports by neighbors of domestic violence. The spacing of the children were so close in age that the mother had no time to heal between pregnancies. And at the time she killed her son, she was having a very difficult pregnancy and had a bruised leg and was limping, possibly from domestic abuse. The father was described in the press as "slow" and the family lived at or below the poverty line. There was little hope for improvement because in ultra-Orthodox communities the common deprivation of secular education precludes a woman from earning an income sufficient to leave a marriage plagued by strife. Besides, divorce is severely looked down upon and carries a social stigma rendering a divorced woman in such circles a pariah. Sadly, under pressure to preserve the community's image of a stable homelife, battered women in religious communities may implode - and their children become the casualties.

9 Clara Hemphill, "A Tradition of Silence Hides Family Violence," by Clara Hemphill, *New York Newsday*, November 19, 1990, pp. 2, 35.

In her follow-up story, Hemphill quoted a professor at Columbia University's School of Social Work who chastised Ohel for their flagrant violation of the mandated reporting statutes in failing to call the State Central Registry (a state hotline for reporting abuse within the home) after receiving reports from neighbors that they "heard a woman's blood-curdling screams coming from the Riegler house at night."¹⁰ Interviewing several government and private industry sources, Hemphill reported that "child welfare experts were astonished by the blunder," referring to Ohel's failure to call the State Central Registry to report abuse.¹¹

When I returned from my interview on the superstition, my father, known for his composure and aplomb, seemed visibly upset. I hadn't realized it, but my appearance on television that morning had triggered a barrage of calls to my father from his rabbinic colleagues shaken by my frank discussion of child abuse in the Orthodox community. Speaking out as a pioneering voice about the disquieting undercurrents within the Orthodox community – with Yaakov Riegler's tragic death highlighting the fragile family bonds usually kept hidden – I undoubtedly stirred angst in the rabbinic leaders.¹² Pointing to his plaque from Yeshiva University, crowded among a sea of others on the wall (he had earned four post-graduate degrees and had received many honors), he intoned: "Keep Yeshiva University out of your public discussions on child abuse in the Orthodox community."

I found my father's admonition in 1990 chilling, though, at the time, I didn't have the slightest inkling that abuse might be occurring at Yeshiva University, and I certainly had no intention of bringing the school into public discourse. In fact, it wasn't until 2012 – ten years after my father had passed away peacefully at age 89 – that I would learn that his esteemed alma mater had been embroiled in scandal. However, back in 1990, as I began my foray into public discussion of the dangers of child abuse, both physical and sexual, Yeshiva University was in the distant, obscure corners of my consciousness. Under those conditions, it was easy to promise my father I would spare his school from reproach; there was no compelling need to expose it anyway.

The struggle between the promise to my late father and the stark reality of the horrid sex abuse scandal at Yeshiva University hadn't emerged until 2012

10 Clara Hemphill, "The Agony of Yacov Riegler: Bureaucracy fails to save Brooklyn boy," *New York Newsday*, December 16, 1990, pp. 6, 22-23. (quote from page 23).

11 Id.

12 In fact, a congregant at my father's synagogue, who was visiting his relative in Mill Basin for the Sabbath, came back to report to my father that the Rabbi of the Flatbush Park Jewish Center, David S. Halpern (now deceased), injected my name into the Sabbath sermon, warning his parishioners to "immediately turn off" their television set if they should see me on the air discussing child abuse in the Orthodox community.

when the school was first exposed in the press for victimizing high school boys from the 1950s to the 1980s, particularly (though not exclusively) those from Holocaust survivor homes.¹³ Truthfully, seeing Yeshiva University's name sullied came like a thunderbolt. I was dumfounded, as were my colleagues, by the revelations of the abuse survivors – and by the shocking realization that no one cared to stop the charging horses of destruction. I kept asking myself: “How could those in charge turn a blind eye to such heinous acts of abuse?”

What made the revelations even more difficult to digest was that the school had an unrivaled reputation. Recognized as the flagship university of Modern Orthodoxy – the zenith of academic excellence – with a curriculum spanning from high school to postgraduate, it was the coveted school of every Orthodox parent. As an iconic structure in Washington Heights, renowned for its commanding position on a high point in upper Manhattan and for its unique eclectic architecture that serves as a physical embodiment of its mission to combine Jewish tradition with modern culture, the school would bask in the glory of its stellar academic reputation and architectural grandeur – and for decades this premier institution had appeared impregnable, yet all the while, students were being abused in the dormitories and elsewhere.

The school's celebrity-like ambiance could be demonstrably seen at critical inflection points. For instance, in 1973, former Israeli Prime Minister Golda Meier gave an address at Yeshiva University at the majestic Nathan Lamport Auditorium (located inside Zysman Hall on the Wilf Campus in Washington Heights) known for its Art Deco and Moorish-gothic revival style. The 1,000 seats were filled to capacity, leaving students crammed in the aisles, practically one on top of another, straining to get a glimpse of the former prime minister. After she spoke, Yeshiva University presented Golda Meier with an honorary degree, and her acceptance was met with a massive standing ovation. Her visit to such an illustrious school would be the capstone of her notable trip to the United States.

Furthermore, their faculty choices epitomize their preeminent standing in the academic world. To wit, their rabbinic program, known as RIETS (Rabbi Issac Elchanan Theological Seminary), would be later be named “The Rabbi Joseph B. Soloveitchik Semikha Program,” after Rabbi Joseph Soloveitchik – a towering figure on the faculty of Yeshiva University for over 40 years, where he taught Talmud and Jewish philosophy to generations of rabbinic students from the 1940s to the 1980s. Rabbi Soloveitchik's reputation resonated throughout Modern Orthodoxy. Earning his doctorate in philosophy, with a focus on neo-Kantianism and a dissertation on Hermann Cohen, from the

¹³ Give citations to articles

University of Berlin (also known as Friedrich Wilhelm University, now Humboldt University), he fused Talmudic analysis with modern existential philosophy. He was considered one of the most brilliant Talmudic analysts and religious philosophers of the 20th century.

Cast as a distinguished, elite, and academically rigorous institution– a prestigious, top-tier pure pedigree fixture of American Jewish educational life – Yeshiva University would be rocked by a December 2012 bombshell investigative report in *The Forward* detailing sexual assault and sodomy committed at their high school’s Washington Heights campus. The abused students pointed to a former Talmud teacher, Rabbi Macy Gordon, and a former principal Rabbi George Finkelstein, wherein the former (not the latter) had committed repeated acts of sodomy in addition to sexual abuse. Seven months later (July 2013), 19 former students (which would subsequently increase to 38 ex-students after the passage of the Child Victims Act in 2019,¹⁴ and later to over 50¹⁵) would file a \$380 million federal lawsuit in

14 Passed in January 2019 and signed into law on February 14, 2019, New York’s Child Victims Act (CVA) was a defining piece of legislation that ended decades of impunity for perpetrators. The reason is that it fundamentally changed legal recourse for incest and child sexual abuse survivors by significantly extending the statute of limitations for civil lawsuits. Specifically, the CVA (Senate Bill S2440) enacted the following changes: 1. Civil lawsuits for child sexual abuse can now be filed until the survivor turns 55, as opposed to age 23 which had been the cutoff point for filing a civil action under the prior statute of limitations. (Under the CVA, the statute of limitations was extended five years from age 23 to age 28 for felony criminal cases.) 2. The 2019 law initially opened a one-year lookback window (from August 14, 2019 to August 14, 2020) for anyone whose lawsuit claim had been summarily dismissed because of the previous statute of limitations which had been set at age 23. This one-year lookback window was later extended to August 2021 because of the Covid restrictions. The provisions of the CVA allowed lawsuits for, or revival of, cases where the former statute of limitations had already expired. The CVA was intentionally designed to recognize that many survivors of childhood sexual abuse require decades to process the trauma and feel secure enough to come forward, often not reporting until well into adulthood.

15 In 2024, *Reuters* staff writer Diana Novak Jones reported on a pair of lawsuits brought by more than 50 former Yeshiva University high school students who stated they had been sexually abused decades ago by teachers and staff while attending the school. The story made headlines because the New York Supreme Court Justice Alexander Tisch rejected Yeshiva University’s motion to dismiss the two parallel lawsuits, “holding that a 2019 New York state law that lifted the statute of limitations on the claims is constitutional.” In supporting the plaintiff’s motion, Justice Tisch stated: “the plaintiffs had sufficiently alleged that the school failed to stop the abuse and failed to provide a safe environment for its students.” See “Sex abuse lawsuits against Yeshiva University can proceed, NY judge says,” April 3, 2024.

New York Supreme Court Justice Alexander Tisch on Tuesday rejected the school’s bid to dismiss the two parallel lawsuits, holding that a 2019 New York state law that lifted the statute of limitations on the claims is constitutional. Justice Tisch also said the plaintiffs had sufficiently alleged that the school failed to stop the abuse and failed to provide a safe environment for its students.”

White Plains, New York, accusing the university of covering up the abuse that occurred between 1969 and 1989.¹⁶

With the revelations in *The Forward*, Yeshiva University would now be refracted through a prism of punishing reality: their once impeccable, pristine reputation was destined to be tarnished by the scandal that darkened their doorstep.¹⁷ The school's chancellor, Rabbi Norman Lamm (now deceased), who signed the plaque that adorned my parents' dining room wall, would now be called into question, asked to account for having ignored the pleas of dozens of high school age boys sodomized and abused by faculty, administrators, and other employees over three to four decades.¹⁸

Just seven days before the lawsuit was filed, Rabbi Lamm issued an emotional six-page resignation letter announcing his retirement after 60 years at Yeshiva University. *New York Times* reporter Ariel Kaminer, quoting from the chancellor's July 1, 2013 letter (appearing on Yeshiva University's website) pointed to Lamm's concessions: "At the time that inappropriate

16Although the abuse spanned four decades from the 1950s through the 1980s, the lawsuits focused on a period starting in 1969. This was likely because earlier abuse victims were older and unable to withstand the rigors of litigation.

17 The sex scandal would entail financial reverberations *pari passu* with the unforgiving assault on its moral integrity. In a September 10, 2015 *Jewish Telegraphic Agency* report titled "Yeshiva University President Richard Joel to step down," staff writer Uriel Heilman presented a sobering analysis of Yeshiva University's financial reverses causing this once thriving institution (which had been known for its strong endowment) to descend into junk bond territory. He wrote: "At around the same time the sex scandal was making news, Moody's downgraded Y.U.'s credit rating to B3, indicating a high credit risk, and warned that the school could run out of money before it had time to address its deep deficits. 'The severity and long duration of Yeshiva's operating deficits are primarily due to weak financial management and the board's unwillingness or inability to act,' " said a [Moody's report](#) in March 2014 that warned the university could run out of money in 2015. 'Historically ineffective internal controls and limited transparency contributed to an inability to identify and correct problems.' " Many believed that a \$380 million lawsuit filed in 2013 by former students of Yeshiva University High School for Boys, alleging decades of covered-up abuse exacerbated its financial instability. The mere threat of a massive payout, potential reputational damage, and the threat of future lawsuits worried credit analysts. In analyzing Yeshiva University's financial reverses, Heilman pointed out: "[t]he first major public financial hit to the university came in 2008, when the Bernie Madoff Ponzi scheme caused significant losses to the Y.U. endowment and many of its major donors." Given the immense pressure leading a university through such severe fiscal challenges, Heilman pointed out that "[i]n 2013 [Richard] Joel was paid \$873,337 and earned an additional \$397,973 in other compensation, according to the university's public tax filings. In 2012, he was the [24th highest-paid](#) university president in the country, according to The Chronicle of Higher Education." On a more sanguine note, Yeshiva University has taken significant, long-term steps to restructure its finances and debt to stabilize its bond credit rating, and by 2022-2026, S & P Global affirmed a 'BBB' -investment-grade rating with a stable outlook, reflecting improved financial management.

18 Emily Davies, " 'It is with shame, and it should be': Dozens sue Yeshiva University High School over alleged sexual abuse," *Washington Post*, August 23, 2019; Sruli Friedman, "Nine Former MTA Students Settle Abuse Lawsuit; Counsel Hopes for More Settlements to Come," *The Commentator*, September 20, 2024.

actions by individuals at Yeshiva were brought to my attention, I acted in a way that I thought was correct, but which now seems ill conceived.... I now recognize that I was wrong.”¹⁹ His letter of apology was dressed in religious terms: he framed his *mea maxima culpa* (“through my most grievous fault”) as the impetus to do “teshuvah,” Hebrew for the act of repenting.²⁰

Following the chancellor’s resignation, Richard M. Joel, Yeshiva University’s school president,²¹ would address a report from Manhattan’s white shoe law firm Sullivan and Cromwell, which had been commissioned by the school to look into the abuse allegations in response to *The Forward’s* explosive story in December 2012:

Earlier today, Sullivan & Cromwell LLP released its [report](#) marking the completion of the firm’s eight-month investigation into allegations of past abuse at Yeshiva University High School for Boys. There are findings set forth in this report that serve as a source of profound shame and sadness for our institution. On behalf of the Board of Trustees and the entire University community, I express my deepest and most heartfelt remorse, and truly hope that our recognition of these issues provides some level of comfort and closure to the victims. Although we cannot change the past, we remain committed to making confidential counseling services available to those individual victims in the hope they can achieve a more peaceful future. It is with them in mind that we move forward in continuing our efforts to lead our community away from a culture of apathy regarding issues of abuse and toward one of action, change and growth.... Sullivan & Cromwell’s investigation and report serve as an important reminder to learn from the past and take responsibility for our future. We must fulfill our mandate to model the finest moral and ethical behavior for the many who look to Yeshiva University to lead, and to serve as a source of light unto the world. We currently find ourselves on the eve of the *Yamim Noraim*, our High Holiday season. Our tradition describes that on *Yom Kippur*, Moses descended from Mt. Sinai with the second set of *luchot*, the Ten Commandments. These tablets differed from the first in that they were written by God and yet fashioned by Moses. In other words, they represented a true partnership between man and the Transcendent, between humanity and the Creator, in ensuring integrity and goodness on this earth. In the season of introspection, we must

19 Ariel Kaminer, “Yeshiva University Chancellor Apologizes for Sexual Abuse Scandal,” *New York Times*, July 1, 2013.

20 Id.

21 The first non-rabbinic president, who was a lawyer instead.

fortify that relationship by recommitting to the ongoing work of creation. If our future is to align with the ethical and personal imperatives of our sacred Torah, then we must not wait – we must make it so, not merely in word but in action. This is our duty. This is what we teach our children. This is what we must remind each other as a community of aspiration. God willing, Yeshiva University and communities everywhere will persevere with an unwavering commitment to protect our children as they themselves develop into the stewards of tomorrow (August 26, 2013).

Good-faith attempts to burnish Yeshiva University's name with a self-commissioned report from a prominent New York City law firm, still doesn't negate the fact that several victims attempted suicide on multiple occasions: many suffered long-term trauma, chronic depression, intrusive thoughts, and flashbacks.²²

Most distressing is that the sex abuse scandal at Yeshiva University instantiated a new sociological phenomenon within post-Holocaust Orthodoxy: *Jew-on-Jew hate crime*, which had been hitherto unseen in American Jewry or in European shtetls (Yiddish for little towns).²³ A few lines from the lawsuit are enough to chillingly illustrate the sheer indignation of such hate crimes:

Rabbi George Finkelstein (promoted to principal) "specifically targeted vulnerable boys for physical and sexual abuse...prey[ing] upon children of Holocaust survivors." He "implored these children to not add insult to their parents' suffering by telling them about his assaults."²⁴

By weaponizing the trauma of his victims' parents, the perpetrator manipulatively ensured his victims' silence: he imposed a *special* onus of guilt on the adolescent boys he abused, by warning them that reporting his crimes to their parents would further devastate persons of a generation already shattered by the trauma of World War II. Such execrable, reprehensible, and unforgiveable behavior reflects the impact of the Holocaust as a *watershed* in the cataclysm of modern Jewish history.

"Intra-group" hate crimes, defined as violence taking place within a single group, have emerged in post-Holocaust societies, representing a distinct

22 Linda Stasi, "Secrets and Lies," Harper's Magazine, October 2019; Lauren Izso, "Untouchable – how the alleged Yeshiva University abusers escaped justice," *The Jerusalem Post*, September 5, 2019.

23 True, the second Holy Temple in Jerusalem was destroyed in 70AD because of "hatred without reason." However, enmity, animus, and misanthropy even in the ancient days of Babylonia did not rise to the level of criminal assault of one Jew upon the other. Jew-on-Jew hate crimes are an artifact of post-Holocaust Orthodoxy.

24 Amended Complaint, Index No. 950111/2019, p. 4.

form of violence from “inter-group” antagonism, such as antisemitism. Sowing the seeds of divisiveness, deviant behavior, as seen among the Yeshiva University perpetrators of sex crimes against their students, highlights the hurdles of social integration of American descendants with their European counterparts. Although time has arguably been a mitigating factor, the wounds of betrayal of the Holocaust survivors by their American brethren have not receded into the safe cubbies of the past; in fact, many have observed that the children of Holocaust survivors are the first to confront the failures of American Jewish leaders during the war, as their parents were too busy surviving upon arrival in American to reflect of these issues.²⁵

Veteran journalist, essayist, and social activist Mordechai I. Twersky, a Yeshiva University sex abuse survivor – just one among more than 50 high school students who were savagely preyed upon by members of the faculty and the administration – wrote on his November 2024 *Times of Israel* blog shortly before the school held its Centennial Hanukkah Dinner:

“As Yeshiva University (YU) approaches its 100th annual Hanukkah Dinner...a celebration of its storied history and accomplishments, there remains an unspoken shadow over the institution’s legacy. For many survivors of sexual abuse, including myself, this milestone is not a cause for celebration but a stark reminder of decades of silence,

25 In fact, Helen Epstein’s seminal work, *Children of the Holocaust* (1979), was among the first to examine the intergenerational transmission of trauma, including how children internalized their parents’ justified bitterness toward the inaction of the outside world. Studies have noted that while many survivors focused on their own survival, their children often voice stronger accusations against the international community, addressing the missed opportunities for rescue. Research indicates that children of Holocaust survivors (the second generation) often grapple with intense feelings of injustice regarding the silence of the world, including American Jews, during the Holocaust. Many have directed their frustration at American Jewish leadership for not doing enough to save European Jews. Rabbi Stephen S. Wise has often been a target of reproach by American scholars, lawyers, and advocates, pointing out his shortcomings as a leader. In an interview with the *International March of the Living*, historian Rafael Medoff (founding director of the David S. Wyman Institute for Holocaust Studies in Washington, D.C., and author of *The Jews Should Keep Quiet: Franklin Roosevelt, Rabbi Stephen S. Wise, and the Holocaust*, Jewish Publication Society (JPS), September 1, 2019; and *America and the Holocaust: A Documentary History*, The Jewish Publication Society (JPS), 2022) showed how Rabbi Stephen Wise faced criticism from contemporary Jewish activists for being blind sighted by the Roosevelt administration, and far too eager to win favor with him at the extreme cost of saving the lives of European Jews. Supporting Roosevelt’s agenda of keeping Jews out of the United States, Wise is accused of having negated various rescue plans, and openly undermining militant activists, such as the Bergson Group, because he feared their loud protests would provoke antisemitism or embarrass the President. Writing in *AJS Perspectives* (the biannual magazine of the Association of Jewish Studies) Medoff showed how Wise denounced the 1943 Rabbis’ March on Washington as a “stunt.” Medoff opined that Wise was embarrassed by the “old-world” appearance of the Orthodox rabbis and worried the march would highlight FDR’s inaction.

evasion, and denial of justice.... Nearly 50 years later, survivors live alone in darkness – marginalized and abandoned by the institution that failed them.”²⁶

More recently, Twersky addressed the issue of why philanthropists must consider the conduct of an institution they support and assert fiduciary responsibility. In the wake of Yeshiva University’s attempt to dismiss the plaintiff’s suit so as to evade its responsibility to restitute victims, he wrote:

“Whatever one believes about the underlying facts, such legal postures inevitably raise questions about institutional priorities – and about what messages philanthropic support may unintentionally convey while those [sex abuse] issues remain unsettled.... Philanthropy often acts in good faith, responding to urgent communal needs. But good intentions do not eliminate fiduciary responsibility. Dollars do more than fund programs. They signal values. They shape incentives. They teach lessons about what conduct carries consequences – and what conduct does not.”²⁷

Stirred by Twersky’s appeals, I am reminded of a verse in Scripture that has always resonated with me – and is especially relevant to *My Manifesto*. In the *Book of Psalms* (85:11 – KJV; 85:12—Hebrew) it states:

Truth shall spring out of the earth, and righteousness shall look down from heaven

Emet me’eretz tizmach, v’tzedek mishamayim nishkaf

In rendering an interpretation of this verse in scripture, Talmudic Sages have pointed to the contrast between the *first* part (“Truth shall spring out of the earth”) and the *second* part (“Righteousness shall look down from heaven”). Whereas, Righteousness (“Heavenly”) represents the Divine – the quintessence, the embodiment of perfection, in other words, the true, objective standard – Truth (“Earthly”) represents the lived experience, fidelity, and reliability of human beings.

This verse from Scripture has resonated in both the Christian and Jewish religions over many centuries. It has been examined for its tropological sense – a Christian method of biblical interpretation focusing on how scriptural texts apply to an individual’s moral life and actions – as part of an exegetical analysis. In comparison to the Western tradition, when exegesis is performed in accordance with Jewish hermeneutics, the “Drash” or Derash

26 Mordechai I. Twersky, “Yeshiva U’s Centennial Ignores Abuse Survivors,” *The Times of Israel*, November 26, 2024.

27 Mordechai I. Twersky, “What Jewish Philanthropy Owes Survivors: Stewardship’s Hard Questions,” *The Times of Israel*, January 28, 2026

(Midrash) – a homiletical or moral interpretation that digs deeply into the text to find ethical, legal and spiritual lessons corresponding to the tropological (moral) sense – the goal is to find practical, ethical, and moral application of the text (“Drash” or “Musal” – Hebrew for the study of ethics) that is specifically focused on the collective, legal, and ethical obligations of the *community writ large*.

Rabbinic sages deduced from this verse in Psalms – “Truth shall spring out of the earth, and righteousness shall look down from heaven” – that while absolute righteousness comes from God, humanity must generate “truth” (or faithfulness) through action. So, what this suggests is that if humans live with integrity and keep their word, they are “sprouting” truth from the earth. I bring the reader’s attention to the order of this verse: The first part is for man – to till the soil in earnest – which serves as a condition precedent for the second part: God’s looking down on earth, where man is then bequeathed with the blessings of the Divine. If the verse had been written in the reverse order, man would first need to wait for God to look down upon him before taking action to sift through the chaos and mayhem to create an orderly world.

Mordechai Twersky, by taking such courageous pro-active steps in seeking justice for over 50 Yeshiva University students, has effectively embodied this biblical teaching. Even more, Twersky’s actions illustrate the Talmudic interpretation of this verse: truth cannot remain solely in heaven as an abstract ideal – airy, empyreal, sublime. Referred to in Western religions as the “Psalm of Return,” or as a prayer of restoration, where human faithfulness (truth) rises from the earth while divine righteousness looks down from heaven to bless the land, all of the efforts of Twersky to right the wrongs at Yeshiva University which inflicted untold suffering on victims to this very day show that truth sprouts from the ground.

I ask: “Why is the ‘grassroots’ metaphor used to describe local activism?” The answer is found in scripture. That is, truth must be cultivated, refined, nurtured on earth like vegetation in a garden – and as the province of man (not God), it sprouts in a messy pot of soil, representing the highly imperfect, chaotic, and muddled nature of human life. Furthermore, in Zohar, Bereshit (21:237) – a foundational text of Jewish mysticism (Kabbalah) focusing on understanding the nature of God, the origins of the universe, and the soul’s relationship to the Divine – it says “And it cast down the truth to the ground.” Derived from the Book of Daniel (8:12), it refers to a metaphysical moment during creation when God cast the divine attribute of Truth down to earth to allow for the existence of humanity. Given that truth is rooted in the ground, I ask, “is it not a coincidence that most, if not all, social justice reforms have evolved from hard-earned ‘grassroots’ activism?”

Beyond a doubt, Mordechai Twersky has been actively tilling the soil of social reform, having emerged as the champion of child safety and as the sentinel of the innocent. His Sisyphean 14-year legal battle against Yeshiva University has been underscored by the defendant's strategic delays and tactics that have been demoralizing, yet he has persevered, demonstrating a strength that can only be described as divinely inspired. For example, in 2025, the *Jerusalem Post* ran a feature story titled "Lead plaintiff in Yeshiva University sexual abuse case accuses legal team of 'assault on dignity' ". In recounting the onerous demands made by Yeshiva's lawyers of the victims – to supply marital counseling records, mental health reports, registration on online dating websites, and even personal mental health records of the plaintiffs' parents – Twersky cried out: "It's a vulgar and obscene attempt to wrap the trauma of childhood sexual abuse victims around the marriages and private struggles of our Holocaust survivor parents, rather than accept responsibility for betraying those parents and failing to protect us."²⁸

In the last analysis, as news reports of the graphic acts of sexual violence and sodomy began to reach a wider audience – through coverage in the *New York Times* and in *Harper's* – a dastardly damning picture began to emerge: one of sinister motives behind the abuse of the Yeshiva University high school students, regrettably aided by an inattentive, phlegmatic administration. Fortunately, the 50 plus Yeshiva University graduates, though brutalized by faculty and staff, have refused to be siloed within the corridors of oblivion. What's more, despite the perpetrators' – and their protectors'²⁹ – desire to see them dissolve into a shadowy gray expanse, their voices remain.

As I harken back to the unnerving conversation with my late father back in 1990 – occurring just after I spoke on live television regarding the tragic killing of Yaakov Riegler by his Hasidic mother on Yom Kippur – I wonder if Yeshiva University had been among the torrent of callers reproving me for speaking out on child

28 Mathilda Heller, "Lead plaintiff in Yeshiva University sexual abuse case accuses legal team of 'assault on dignity'," *The Jerusalem Post*, July 8, 2025.

29 Here is an example of how the plaintiff's case against the perpetrators of sexual abuse has allegedly been undermined by the "protectors." In court papers, reviewed the *Jerusalem Post* for their story ("Lead plaintiff in Yeshiva University sexual abuse case accuses legal team of 'assault on dignity,' "), they pointed to charges by the plaintiffs that YU has engaged in witness tampering after a crucial witness – Rabbi Bloch – allegedly withdrew from his deposition after being contacted by university attorneys. They quoted Twersky: "The loss of his testimony, according to court documents, was both unexpected and irreversible." The paper then said: "The court documents, viewed by the Post, claim YU's lawyers 'thwarted the deposition.' "

abuse within the community? Back then, the boys, traumatized from acts of sodomy and sexual abuse, were too young to expose the horrid scandal. But the school certainly knew; they admitted years later to having been “wrong” in the way they handled the complaints of sexual violence brought to their attention at the time. And they may have shuddered at the thought that I’d expose them.

In the face of such deep-rooted abuse, I have no choice but to break the promise I made to my late father so many decades ago and to disregard his final warning: “Keep Yeshiva University out of your public discussions on child abuse in the Orthodox community.” For the sake of the vulnerable children, I’m afraid I can no longer keep that silence.